

Subject: **LAW**

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Paper: **ADVANCED JURISPRUDENCE**

Module: **CONCEPTIONS OF SOCIAL JUSTICE: RAWLS, HAYEK, NOZICK, SEN AND NUSSBAUM**



ज्ञान-विज्ञान विमुक्तये

Component-I (A)- Personal Details

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Component-I (B)- Description of Module

Description of Module	
Subject Name	Law
Paper Name	Advanced Jurisprudence
Module Name/Title	Conceptions of Social Justice: Rawls, Hayek, Nozick, Sen and Nussbaum
Module Id	Module 3
Pre-requisites	A general understanding of social justice is required for a proper

	understanding of this module.
Objectives	After going through this module, you should be able to: • understand the meaning and nature of social justice; • understand the overarching theoretical frameworks of social justice developed by John Rawls, Friedrich Hayek, Robert Nozick, Amartya Sen, and Martha C. Nussbaum • articulate your own positions in a clear, coherent and logical manner on the issues of social justice; and • examine issues concerning social injustice, and critically analyse them with remedial tools.
Key Words	Social Justice, Difference Principle, Primary Goods, Spontaneous Order, Capability,

MODULE OVERVIEW:

For centuries, human society is constantly assessed with the principle of social justice. Yet the demands and principles of social justice are not always clear. What is social justice? Why does social justice matter? Is it concerned with equal opportunity or outcome or distribution of resources or capabilities or removal of poverty or creation of just institutions? As a result, there are great theoretical disagreements on the issues and remedies of the social justice concepts. For example, John Rawls' egalitarian overtones of social justice was criticised by the libertarian scholars. Friedrich Hayek regarded social justice as a 'weasel word', while Robert Nozick argued that if individuals have acquired their property through just transactions, then whatever results is just. On the other hand, Amartya Sen and Martha C. Nussbaum approached the question of justice on a totally different terrain of 'capability'. In this background, we aim to explore broad context of social justice issues in different theoretical frameworks through the writings and opinions of eminent thinkers like John Rawls, Friedrich Hayek, Robert Nozick, Amartya Sen, and Martha C. Nussbaum. In this process, we think, it is also essential to understand the relationship between theories of justice and the values of liberty, equality and capability together.

OBJECTIVES

After studying this module you should be able to:

- understand the meaning and nature of social justice;
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- examine issues concerning social injustice, and critically analyse them with remedial tools.

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The term 'social justice' in the modern sense has been used to ensure social well being of the people. It is generally argued that in conditions of social justice, people are "not be discriminated against, nor their welfare and well-being constrained or prejudiced on the basis of gender, sexuality, religion, political affiliations, age, race, belief, disability, location, social class, socioeconomic circumstances, or other characteristic of background or group membership" (Toowoomba Catholic Education, 2006)¹. However, as a distinctive concept, social justice is concerned with the just distribution of resources, opportunities, and privileges in the society as well as wages, profits, housing, medical care, welfare schemes to meet the principle of justice. In a word, social justice is all about 'who should get what and how'. Opinions of the political thinkers are highly divided on 'what is called just distribution.' As a result, a number of contrasting principles of social justice came into effect like 'to each according to his needs', 'to each according to his rights', 'to each according to his deserts', 'to each according to his labour', and 'to each according to his capability.' To address the issues of social justice more seriously, we will focus on the work of five thinkers, Rawls, Friedrich Hayek, Robert Nozick, Amartya Sen, and Martha C. Nussbaum.

<http://gjs.appstate.edu/social-justice-and-human-rights/what-social-justice>

ABOUT JOHN RAWLS



- **John Bordley Rawls (1921-2002)** was an American philosopher and a prominent figure in moral and political philosophy.
- His father was a prominent lawyer, his mother a chapter president of the League of Women Voters.
- Rawls studied at Princeton, where he was influenced by Wittgenstein's student Norman Malcolm; and at Oxford, where he worked with H. L. A. Hart, Isaiah Berlin, and Stuart Hampshire.
- In 1962 Rawls joined the faculty at Harvard, where he taught for more than thirty years.
- Rawls lost his Christian faith as an infantryman in World War II on seeing the horrors of the Holocaust.
- Rawls received both the Schock Prize for Logic and Philosophy and the National Humanities Medal in 1999.
- Rawls's books include *A Theory of Justice* (1971); *Political Liberalism* (1993), and *The Law of Peoples* (1999)

JOHN RAWLS: EGALITARIAN DISCOURSE ON SOCIAL JUSTICE

The egalitarian discourse on 'social justice' reached its high point in 1971 with the publication of *A Theory of Justice*, written by the Harvard philosopher John Rawls. To Rawls, social justice is about assuring the protection of equal access to liberties, rights, and opportunities, as well as taking care of the least advantaged members of society. In this pursuit, Rawls argues for a theory of justice, which is based on the maintenance of the following two principles.

1. Each person is to have an equal right to the most extensive basic liberty compatible with a similar liberty for all.
2. Social and economic inequalities are to be arranged so that they are both (a) to the greatest benefit of the least advantaged; and (b) attached to offices and positions to all under conditions of fair equality of opportunity.

Rawls' first principle is a familiar one – each person has an equal right to free speech, association, conscience, thought, property, a fair trial, to vote, hold political office if qualified and so on. Principle 2a is also familiar – jobs and services should be open to all (equal access), but furthermore society should be so arranged that as far as possible people have an equal opportunity to get jobs and gain access to services. Principle 2b- famously known as the difference principle-is the novel one and points towards a significant measure of social equality but not in the absolute sense. Rawls' conception of social justice asserts that material inequalities are only justifiable when they work to the advantage of the less well-off. Rawls explains the difference principle this way: "To say that inequalities in income

and wealth are to be arranged for the greatest benefit of the least advantaged simply means that we are to compare schemes of cooperation by seeing how well off the least advantaged are under each scheme, and then to select the scheme under which the least advantaged are better off than they are under any other scheme."

By the least advantaged, Rawls is referring to those who lack what he calls "primary goods". Primary goods, according to Rawls, include "things needed and required by persons seen in the light of the political conception of persons, as citizens who are fully cooperating members of society, and not merely as human beings apart from any normative conception. These goods are things citizens need as free and equal persons living a complete life; they are not things it is simply rational to want or desire, or to prefer or even to crave". Such goods include:

- The basic rights and liberties: freedom of thought and liberty of conscience, and the rest;
- Freedom of movement and free choice of occupation against a background of diverse opportunities, which opportunities allow the pursuit of a variety of ends and give effect to decisions to revise and alter them;
- Powers and prerogatives of office and position of authority and responsibility;
- Income and wealth, understood as all-purpose means (having an exchange value) generally needed to achieve a wide range of ends whatever they may be; and
- The social bases of self-respect, understood as those aspects of basic institutions normally essential if citizens are to have a lively sense of their worth as persons and to be able to advance their ends with self-confidence.



Rawls also argues that the first principle-the basic liberty principle- has 'lexical priority in case of conflict over the second principle. That means you cannot sacrifice liberty for economic justice. You must satisfy fully the equal liberty principle before applying the difference principle. Similarly, the principle of fair equality of opportunity has priority over the difference principle.

ABOUT FREDERICH VON HAYEK



- **Friedrich Von Hayek** was born in Vienna, as Friedrich August von Hayek in 1899 and died in 1992.
- His life's work, for which he won a Nobel Prize in 1974, illuminated the nature and significance of spontaneous order. Hayek also served in World War I.
- He spent most of his academic life at the London School of Economics (LSE), the University of Chicago, and the University of Freiburg.
- He was the first recipient of the Hanns Martin Schleyer Prize in 1984. He also received the US Presidential Medal of Freedom in 1991.
- In 2011, his article "The Use of Knowledge in Society" was selected as one of the top 20 articles published in The American Economic Review during its first 100 years.
- **Scholarly Works:** *Prices and Production, Monetary Nationalism and International Stability, The Road to Serfdom; The Constitution of Liberty; Law, Legislation and Liberty*

Rawls specifies that "fair equality of opportunity" requires "not merely that public offices and social positions open in the formal sense, but that all should have a fair chance to attain them."

Nevertheless, Rawlsian idea of 'social justice' became subject to the intellectual and political onslaught in the name of economic efficiency. The pursuit of social justice is harming economic growth and to the detriment of all members of the society. The intellectual strand of this reaction was developed by Friedrich von Hayek and Robert Nozick. Let us look at their conception of justice.

FREDERICH VON HAYEK: SOCIAL JUSTICE – A MIRAGE!

Friedrich von Hayek, the winner of Nobel Prize for Economics in 1974, offered neo-liberal critic to the idea of social justice. His views on social justice are best described as outgrowths of his economic doctrines that the economic policy of governments should be as noninterventionist to facilitate rational economic decision making by individuals in the market. The freedom to make rational economic decisions will create an environment of rational social coordination which eventually bring what he called "spontaneous order." Such observations led Hayek to conclude that the state should play a far more modest and minimal role in regulating social and economic cooperation.

In the second volume of *Law, Legislation and Liberty*, Hayek asserted that social justice is a "mirage." His discontent with social justice could easily be marked when he also called social justice a "will-o-the-wisp", an "empty formula," "empty and meaningless"; "a vacuous concept; "a quasi-religious belief with no content whatsoever", a "primitive...anthropomorphism" like believing in witches or the philosopher's stone, or a "hollow incantation" like "open



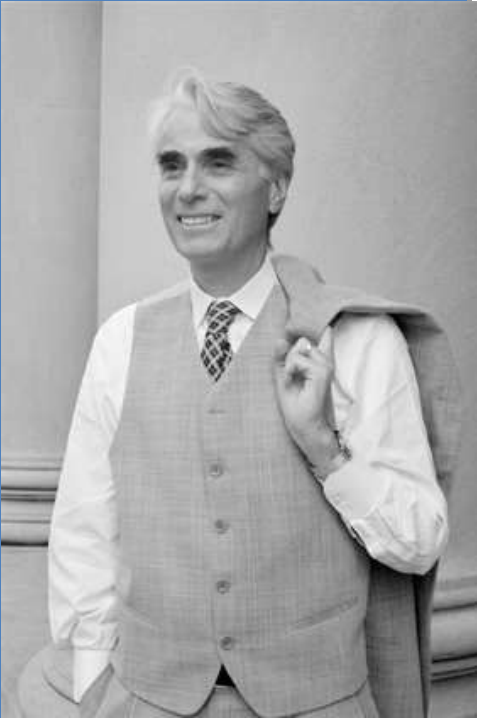
sesame". He further argues that social justice is a particularly dangerous superstition, describing it as "that incubus which today makes fine sentiments the instruments for the destruction of all values of a free civilization", leading to "the destruction of the indispensable environment in which the traditional moral values alone can flourish, namely personal freedom". Furthermore, social justice has become a source of "sloppy thinking and even intellectual dishonesty". In his later work on the errors of socialism, entitled *The Fatal Conceit*, he called the word "social" a "weasel word". He referred to "social justice" as "much the worst use of 'social', one that "wholly destroys" the meaning of the word it qualifies, a "semantic fraud."

It should be added that Hayek's hostile remarks on social justice and insistence on minimal government is much influenced by an inveterate tendency to mistrust the motives of politicians. In essence, he is not claiming that the idea of social justice is meaningless in its intent. In fact, he looked at human conduct and situations created by human in terms of just or unjust. In this line, Hayek does not deny that we may have a duty to help reduce inequality and suffering and caused by others or by nature. He also implicitly accepts the legitimacy of state provision of income support for those who can't support themselves in the market. Hayek, for example, suggests that a scheme for assistance against severe deprivation is in the interest of all; indeed, he adds that 'it may be felt a duty of all to assist, within the organized community, those who cannot help themselves'. Here, Hayek agreed to the principle that there may be a moral imperative to put in place a minimum income.

In his earlier work, *The Constitution of Liberty*, Hayek conceded that a more equal distribution of income or wealth was desirable, but did not approve the desirability of "discriminatory coercion or privilege" as sufficient justification to achieve the same. Hayek also offered a specific principle - the principle of maximizing the chances of success for any person picked out at random, success in satisfying whatever purposes that person may have. Hayek also argues that there is "no need morally to justify specific distributions (of income or wealth) which have not been brought about deliberately but are the outcome of a game that is played because it improves the chances of all". His confidence in libertarian society laid him to claim in *Social Justice, Socialism and Democracy* that the least well off under a free market society do better and get more than they would in an egalitarian centrally-directed system.



ABOUT ROBERT NOZICK



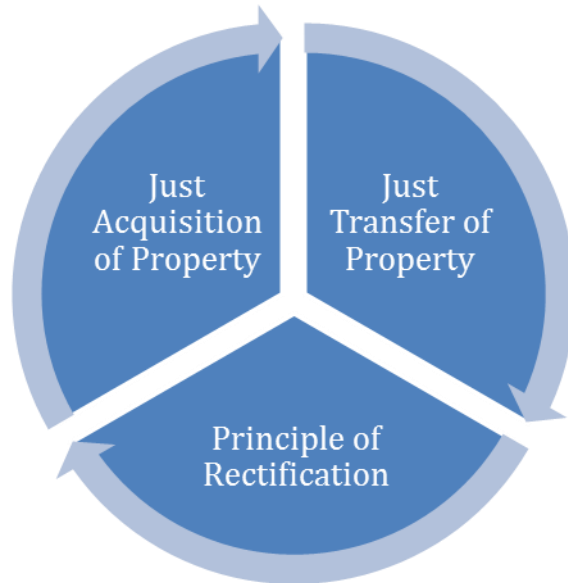
- Robert Nozick was born in Brooklyn in 1938 to a Russian Jewish immigrant family and died in 2002 from stomach cancer.
- He earned his Ph.D. in Philosophy from Princeton University in 1963.
- He taught for a couple of years at Princeton, Harvard, and Rockefeller Universities before moving permanently to Harvard in 1969.
- He became widely known through his 1974 book, *Anarchy, State, and Utopia*. His other books include—*Philosophical Explanations* (1981), *The Examined Life* (1989), *The Nature of Rationality* (1993).

ROBERT NOZICK ON 'ENTITLEMENT THEORY OF JUSTICE'

Robert Nozick, through his book *Anarchy, State and Utopia* made serious attempt in the second half of the twentieth century to reaffirm the values and beliefs of 'classical' liberalism. As such, it quickly became one of the key texts of the so called 'Libertarian' and 'New Right'. This text is a leading philosophical counter statement of Nozick to the ideas of social justice developed by John Rawls. Drawing from Lockean doctrine of inalienable 'natural' rights, Nozick argues for the 'entitlement theory of justice. The basic presumption of Nozick is that societies consist simply of individuals, each of whom is assumed to be endowed by nature with rights that no government may infringe or abrogate without their bearer's consent. One consequence of the inviolability and moral supremacy of the individual is that the infringement of individual's right for supposedly greater good is inadmissible in any process of political decision-making. Another consequence is that the only kind of state that is rationally justifiable is a 'minimal' state, equipped with just enough power to perform the functions of protection and defence: a state, that is, that will impinge upon the rights of its subjects as little as possible.

He suggested three justice preserving principles.

1. A principle of justice in initial acquisition explains the circumstances under which property can be appropriated from nature. It means, wealth has to be justly acquired in the first place, that is, it should not have been stolen and the rights of others should not have been infringed.
2. A principal justice in transfer explains how property can justly be transferred from one person to another. It means the justly acquired wealth has to be justly transferred from one responsible person to another.
3. A principle of justice in rectification deals with violations of the first two principles. It means, if wealth has been acquired or transferred unjustly this injustice should be rectified.



Three Preserving Principles of Justice

It is clear from the above principle that like Hayek and many other libertarians, Nozick was also deeply suspicious about the idea of social justice and rejected absolutely the moral basis of the redistribution of wealth and resources. He argues that if wealth is transferred from rich to poor, either within a society or between societies, it is only as an act of private charity, undertaken through personal choice rather than moral obligation.

CAPABILITY APPROACH TO JUSTICE

Capability approach has been developed in the late twentieth century as an alternative to distributional equality principle to social justice. It was initially proposed by Amartya Sen, and developed by Martha Nussbaum and others. Let us discuss the conception of these two scholars in further detail. Both Sen and Nussbaum have argued that justice is concerned with the distribution of *capabilities*, which are the effective abilities (opportunities) of individuals to function.

1. AMARTYA SEN AND JUSTICE

Amartya Sen, through his recent intervention, *The Idea of Justice* and earlier works like *Development as Freedom*, *On Economic Inequality*, *Poverty and Famines* approached the question of justice differently. Sen argues that the classical theories of social justice are in error while addressing the questions of capability.

In *Development as Freedom*, Sen argues that what matters is not what resources you have or what level of subjective welfare you can achieve, but rather what your resources and other opportunities allow you to 'do and be.' Sen calls this phenomenon as your 'capability function.' For Sen, different individuals might need different packages of resources to function to the same degree, dependent on their particular needs. Sen further argues that a functioning is an 'achieved' being or doing- being healthy, having control over your environment, and so on- whereas a capability is, in effect, one's opportunity to achieve a functioning. For example, if a rich person decides to fast, he or she may lack the functioning of nutrition, but he or she still has the capability. The person could nourish himself if he or she were choose to do so. Sen thus propounds that

government should be concerned with ensuring the concrete capabilities of their citizens rather than functionings.

ABOUT AMARTYA SEN



- **Amartya Kumar Sen (1933-)** is an Indian economist and philosopher.
- He was awarded the Nobel Memorial Prize in Economic Sciences in 1998 for his work in welfare economics.
- In 1972, he joined the London School of Economics as a Professor of Economics where he taught until 1977. He also taught at the University of Oxford, Harvard and Trinity College, Cambridge.
- His most notable works include *On Economic Inequality*; *Poverty and Famines*; *Inequality Re-examined*; *The Quality of Life* with Martha Nussbaum; *Development as Freedom*; *The Argumentative Indian*; *The Idea of Justice*; and *An Uncertain Glory: The Contradictions of Modern India* with Jean Dreze

Through his book *Idea of Justice* Amartya Sen offered a powerful critique of the Rawlsian notion of social justice. His criticism of Rawls is revolving around the neglect of *nyaya* for *niiti* by Rawls. The *niiti-nyaya* distinction ranges over two disagreements. First, Rawls focuses upon what a perfectly just society should do, whereas for Sen, the most important problems that we need to confront are comparative problems, concerning ways of moving toward societies that are less unjust. Second, for Rawls, justice is essentially about institutions and the particular distributions of goods are derivatively just if they are produced by just institutions; Sen, on the contrary, thinks that justice is essentially about 'how well or badly off individuals actually are', and 'what happens to people'.

Sen linked capabilities with substantive freedom, focuses on the actual ability to do different things that a person values. For example, a person with a large amount of wealth cannot be considered advantaged if she suffers from a severe disability. Rawls's primary goods are for Sen 'feticist' because they wrongly consider primarily means where they should rather consider ends. For example, poverty cannot be properly understood just in terms of income (or wealth, for that matter). Because, Sen claims, what really counts is the way in which different persons convert income or primary goods into good living. Disabilities constitute another relevant example because they clearly point to a difficulty in the conversion of resources into capabilities.

2. MARTHA NUSSBAUM AND JUSTICE

Martha Nussbaum worked in collaboration with Sen on issues of development and contributed significantly so far as the "capabilities approach" to justice is concerned. She uses the term 'basic capabilities' to refer to "the innate equipment of individuals that is necessary for developing the more advanced capabilities", such as the capability of speech and language, which is present in a newborn but needs to be fostered.

In her book *Frontiers of Justice* she states there can be various other factors involved such as "a wide range of motives, including the love of justice itself, and prominently including a moralized compassion for those who have less than they need to lead decent and dignified lives." She has also been critical to Sen's idea of HDI as to say that nations being compared in areas such as health and educational attainment are very fine. But concerning what level of health service, or what level of educational provision, a just society would deliver as a fundamental entitlement of all its citizens; the view is suggestive, but basically silent.

Nussbaum's views on state action in the mitigation of human justice, has the state take on a positive role. She agrees with Sen regarding the existence of negative rights instead

ABOUT MARTHA NUSSBAUM



- **Martha Craven Nussbaum** (born May 6, 1947) is an American philosopher and the current Ernst Freund Distinguished Service Professor of Law and Ethics at the University of Chicago.
- She previously taught at Harvard and Brown.
- She has received honorary degrees from fifty colleges and universities from across the world.
- She received the Grawemeyer Award in Education in 2002, the Barnard College Medal of Distinction in 2003, the Radcliffe Alumnae Recognition Award in 2007, and the Centennial Medal of the Graduate School of Arts and Sciences at Harvard University in 2010. In 2012 she was awarded the Prince of Asturias Prize in the Social Sciences.
- Her major works include: *The Fragility of Goodness* (1986); *Loves knowledge* (1990); *The Therapy of Desire* (1994); *Poetic Justice* (1995); *Cultivating Humanity* (1997); *Sex and Social Justice* (1998); *Women and Human Development* (2000); *Upheavals of Thought. The Intelligence of Emotions* (2001); *Frontiers of Justice* (2006); *The Clash Within* (2007); *Liberty of Conscience* (2008); *Not For Profit* (2010); *Creating Capabilities* (2011); and *Political Emotions* (2013).

of positive rights. “Often fundamental entitlements have been understood as prohibitions against interfering state action, and if the state keeps its hands off, those rights are taken to have been secured; the state has no further affirmative task.” says she. This, she says leaves things disgracefully undetermined as to whether hindrances supplied by the market, or private actors, are to be considered violations of fundamental rights of citizens. Rather she demands a affirmative understanding of Fundamental rights, believing it to be extremely important for establishment of Social Justice, an understanding that “directs governments to think from the start about what obstacles there are to full and effective empowerment for all citizens, and to devise measures that address these obstacles.”

Nussbaum not only strengthened the capability approach but also produced a provisional list of capabilities in her book *Women and Human Development: The Capabilities Approach*, which she claims has universal validity and should be enshrined in every country's constitution



Nussbaum's list of capabilities

- Life: Being able to live to the end of a human life of normal length.
- Bodily health: Being able to have good health, including reproductive health; to be adequately nourished, to have adequate shelter.
- Bodily integrity: Being able to move freely from place to place; being able to be secure against assault, including sexual assault, child sexual abuse, and domestic violence; having opportunities for sexual satisfaction and for choice in that matter of reproduction.



- Sense, imagination and thought: Being able to think, imagine and reason- and to do these things in a way informed and cultivated by an adequate education. Freedom of speech, expression and religion.
- Emotions: Being able to have attachments to things and people outside to ourselves; to love those who love and care for us.
- Practical reason: Being able to engage in critical reflection about the planning of one's life.
- Affiliation: Being able to live with and toward others, to recognise and show concern for other human beings, to engage in various forms of social interaction. Having the social bases of self-respect and non-humiliation. Not being discriminated against on the basis of gender, religion, race, ethnicity, and the like.
- Other species: Being able to live with concern for and in relation to animals, plants, and the world of nature.
- Play: Being able to laugh, to play, to enjoy recreational activities.
- Control over one's environment: Being able to participate effectively in political choices that govern one's life. Being able to have real opportunity to hold property. Having the right to seek employment on an equal basis with others.

Nussbaum not only advocates that everyone is entitled, as a matter of justice, to threshold levels of all the capabilities on her list; but also insisted that it is the governments' duties to guarantee these entitlements. Nevertheless, she remains silent on the question who precisely should bear the burdens and responsibilities for realizing these capabilities.

SUMMARY

- Social justice is concerned with the just distribution of resources, opportunities, and privileges in the society as well as wages, profits, housing, medical care, welfare schemes to meet the principle of justice.
- To Rawls, social justice is about assuring the protection of equal access to liberties, rights, and opportunities, as well as taking care of the least advantaged members of society.
- Hayek concludes that the state should play a far more modest and minimal role in regulating social and economic cooperation.
- The basic presumption of Nozick is that societies consist simply of individuals, each of whom is assumed to be endowed by nature with rights that no government may infringe or abrogate without their bearer's consent.
- Sen argues that what matters is not what resources you have or what level of subjective welfare you can achieve, but rather what your resources and other opportunities allow you to 'do and be.' Sen calls this phenomenon as your 'capability function.'



- In her book *Frontiers of Justice*, Nussbaum states there can be various other factors involved such as “a wide range of motives, including the love of justice itself, and prominently including a moralized compassion for those who have less than they need to lead decent and dignified lives.”

CONCLUSION:

To sum up, the term ‘social justice’ is widely used in political and philosophical debates, and fiercely contested. This has given rise to diverse perspectives on social justice. Many of these concentrate on devising principles for the distribution of scarce goods. However, by the late 1970s, the goal of social justice was challenged and was largely supplanted by an emphasis on economic growth and individual freedom.

Nevertheless, we have discussed some promising recent theoretical developments on the question of social justice that may help to resolve some of the issues of everyday relevance. With substantive focus on liberty, the egalitarian framework of John Rawls accommodated the principles of equal opportunity and inequality to favour the least disadvantaged section of the society.

However, Rawlsian pursuit of social justice was treated detrimental to all the members of the society by the intellectual strand of libertarianism developed by Hayek and Nozick. They argued that government action to enforce a theory of social justice interfered with the liberty of individuals to govern their own lives and property. But, more fundamentally, Hayek and Nozick both argued that society as a whole cannot be assessed as just or unjust.

An alternative to distributional principle of social justice was articulated as capability approach initially proposed by Amartya Sen, and developed by Martha Nussbaum. This approach has been influential in two ways: first, it has been applied to development economics; second, it has helped to move forward the debate on equality and social justice.

DID YOU KNOW?

1. 68% of African-Americans live within 30 miles of a coal-fired power plant
2. Low-income and minority Americans tend to live and work in areas disproportionately exposed to pollution
3. 66% of Hispanics live in areas that do not meet the federal government’s air quality standards
4. African American children have a 500% higher death rate from asthma, as compared with White children
5. 85% of inner-city children with asthma have uncontrolled symptoms
6. Over 72% of African Americans live in counties that violate federal air pollution standards
7. Latino children are 60% more at risk than their white counterparts to have asthma attacks



8. 17% of all African American children are asthma sufferers
9. Hispanics are 30% more likely to visit the hospital for asthma, as compared to non-Hispanic Whites
10. In 2003, 21% of Latino children were uninsured, compared with 15% of African American children

SOME INTERESTING FACTS

- F.A. Hayek was opposed to the theories of J.M. Keynes.
- It was Martha C. Nussbaum who said “You can’t really change the heart without telling a story.”
- In 1990, Amartya Sen authored a controversial essay for the The New York Review of Books, titled ‘More Than 100 Million Women Are Missing’. The essay throws light on the gender imbalance and the reasons for it.
- Rawls lost his Christian faith as an infantryman in World War II on seeing the capriciousness of death in combat and learning of the horrors of the Holocaust.
- Robert Nozick is popularly known as the philosophical father of Libertarianism.